

Aurovill Appliances Pvt Ltd vs District Magistrate & 4 on 5 October, 2015

Author: Abhilasha Kumari

Bench: Abhilasha Kumari

C/SCA/8852/2015 CAV JUDGMENT

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD

SPECIAL CIVIL APPLICATION NO. 8852 of 2015

HONOURABLE SMT. JUSTICE ABHILASHA KUMARI

AUROVILL APPLIANCES PVT LTD....Petitioner(s)

Versus

DISTRICT MAGISTRATE & 4....Respondent(s)

Appearance:

MR JAL SOLI UNWALA, ADVOCATE, MS TEJAL A VASHI, ADVOCATE for the Petitioner

MS SHRUTI PATHAK, ASSISTANT GOVERNMENT PLEADER for Respondents No. 1 - 2

RULE SERVED for Respondent No.4.

CORAM: HONOURABLE SMT. JUSTICE ABHILASHA KUMARI

Date: 05/10/2015

C.A.V. JUDGMENT

1. This petition under Articles 226 and 227 of the Constitution of India has been preferred, inter alia, with a prayer to quash and set aside the impugned order dated 09.05.2014, passed by respondent No.2 - Additional District Magistrate, Valsad, under Section 14 of the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 ("the SARFAESI Act" for short), on the ground that the said order is without jurisdiction and the authorised officer of respondent No.3 - Central Bank of India, has no power to evict the petitioner, who is a lessee, from the disputed property, in view of the provisions of sub-section 13 of Section 13 of the SARFAESI Act. It is further prayed that the seals and lock applied by respondent No.3 - Bank on the premises of which the petitioner is a lessee be opened and the possession thereof be restored to the petitioner.

2. Briefly stated, the facts of the case emerging from the memorandum of the petition are to the following effect:

2.1 The petitioner is a Company, duly registered under the provisions of the Companies Act, 1956 and is being represented through its Director. Respondent No.1 is the District Magistrate, Valsad, and respondent No.2 is the Additional District Magistrate, Valsad. Respondent No.3 is the Central Bank of India, a Banking Company constituted under the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970.

2.2 The subject-matter of the petition is the property at Plot No.6A, Ranchhodji Nagar, having three floors, situated near Dharampur road, Abrama, Taluka and District Valsad (hereinafter referred to as the disputed property), owned by respondent No.4 ("the original owner" for short).

2.3 The petitioner asserts that it is the lessee of the disputed property and is carrying on its business.